



Appeal Decisions

Site visit made on 9 June 2026

by Vicky Simpson BSc (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 07 September 2026

Appeal A Ref: 6004673

Dean Farm, Long Bottom Lane, Jordans, Buckinghamshire HP9 2UT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 - as amended (the Act) against a failure to give notice within the prescribed period of a decision on an application for planning permission under section 73 of the Act for the development of land without complying with conditions subject to which a previous planning permission was granted.
- The appeal is made by Mr and Mrs Paul Connolly against Buckinghamshire Council.
- The application Ref is PL/25/5175/VRC.
- The application sought planning permission for refurbishment and extension of listed farmhouse and outbuildings comprising: main house - demolition of rear extension, construction of glazed rear extension; barn - conversion to residential, extension to end of barn containing link to house; cottage - two storey extension; granary - conversion to residential with installation of windows; construction of garage/studio, outdoor swimming pool and tennis court; demolition of outbuildings; changes to driveway, parking areas and landscaping, without complying with a condition attached to planning permission Ref PL/24/3830/FA, dated 14 August 2025.
- The condition in dispute is condition 14 which states that:

Drawings by Jane Duncan Architects:

CDF-247-PL001C Site Location and Existing Block Plans (received 13.12.24)

CDF-247-PL002B Proposed Block Plan (received 01.08.25)

CDF-247-PL1.15B House Barn and Cottage Demolitions Ground Floor Plans (received 14.07.25)

CDF-247-PL1.16B House Barn and Cottage Demolitions First Floor Plans (received 14.07.25)

CDF-247-PL1.17A House Barn and Cottage Demolitions Roof Plans (received 14.07.25)

CDF-247-PL1.18 Granary Demolitions (received 17.07.25)

CDF-247-PL1.19B House Barn Cottage Demolitions Proposed Elevations (received 14.07.25)

CDF-247-PL1.20B Extensions and Barn Conversion (received 14.07.25)

CDF-247-PL1.21 Old Dairy Demolitions (received 14.07.25)

CDF-247-PL2.15B House Barn and Cottage Proposed Ground Floor Plans (received 14.07.25)

CDF-247-PL2.16B House Barn and Cottage Proposed First Floor Plans (received 14.07.25)

CDF-247-PL2.17B House Barn and Cottage Proposed Roof Plans (received 14.07.25)

CDF-247-PL2.18 Granary and Garage Proposed Plans & Elevations (received 17.07.25)

CDF-247-PL2.20C House Barn and Cottage Proposed Elevations (received 14.07.25)

CDF-247-PL2.21B House Barn and Cottage Proposed Elevations (received 14.07.25)

CDF-247-PL2.22A Proposed Site Sections (received 14.07.25)

o Area Schedule by Jane Duncan Architects dated 01.08.25 (received 01.08.25)

o Design and Access Statement dated December 2024 (received 13.12.24) and Addendum dated March 2025 (received 25.07.25);

o Heritage Statement dated December 2024 (received 13.12.24), Heritage Addendum dated March 2025 (received 25.03.25), Heritage Addendum dated 29 May 2025 (received 29.05.25), all by Built Heritage Consultancy;

o Landscape Plan (Drawing No. LC-2980-01c) dated 31.07.25 by Landscape Connection (received 01.08.25)

o Landscape Design Statement by Landscape Connection (received 13.12.24);

o Arboricultural Impact Assessment dated 28 November 2024 by GHA Trees (received 26 February 2025);

o Flood Risk Assessment dated December 2024 by Glanville (received 13.12.24);

o Ecology Impact Assessment (including Biodiversity Net Gain Assessment) dated December 2024 (received 13.12.24), and letter response dated 5 March 2025 by Future Nature WTC (received 06.03.25);

- o *Marketing Report dated 21 November 2024 (received 13.12.24), and Marketing Report Addendum dated 17 March 2025 (received 25.07.25), both by Ashington Page;*
 - o *Sustainability and Energy Statement dated October 2024 by Maven Sustainability (received 13.12.24);*
 - o *Conservation Structural Engineers Report for Farmhouse dated 11 September 2024 by Ayesa (received 13.12.24);*
 - o *Conservation Structural Engineers Report for Barn dated 11 September 2024 by Ayesa (received 13.12.24);*
 - o *Conservation Structural Engineers Report for Granary dated 11 September 2024 by Ayesa (received 13.12.24);*
 - o *Timber Dampness Assessment dated 2 September 2024 by Harper Building Diagnostics (received 13.12.24);*
 - o *Planning Statement dated December 2024 by Maven Plan (received 13.12.24).*
- Drawing No.(s):*
and in accordance with any other conditions imposed by this planning permission.
- The reason given for the condition is: To ensure that the development is carried out in accordance with the details considered by the Local Planning Authority.
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Appeal B Ref: 6004675

Dean Farm, Long Bottom Lane, Jordans, Buckinghamshire HP9 2UT

- The appeal is made under section 20 of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for listed building consent.
 - The appeal is made by Mr and Mrs Paul Connolly against Buckinghamshire Council.
 - The application Ref is PL/25/5170/HB.
 - The works proposed are the refurbishment and extension of listed farmhouse and outbuildings comprising: main house - demolition of rear extension, construction of glazed rear extension at ground and first floor level and single-storey glazed link to cottage at ground floor level; barn - conversion to residential, extension to end of barn containing link to house; cottage - two storey extension; granary - conversion to residential with installation of windows; construction of garage/studio, outdoor swimming pool and tennis court; demolition of outbuildings; changes to driveway, parking areas and landscaping.
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Decisions

Appeal A

1. The appeal is dismissed and planning permission is refused for refurbishment and extension of listed farmhouse and outbuildings comprising: main house - demolition of rear extension, construction of glazed rear extension; barn - conversion to residential, extension to end of barn containing link to house; cottage - two storey extension; granary - conversion to residential with installation of windows; construction of garage/studio, outdoor swimming pool and tennis court; demolition of outbuildings; changes to driveway, parking areas and landscaping.

Appeal B

2. The appeal is dismissed and listed building consent is refused for the refurbishment and extension of listed farmhouse and outbuildings comprising: main house - demolition of rear extension, construction of glazed rear extension at ground and first floor level and single-storey glazed link to cottage at ground floor level; barn - conversion to residential, extension to end of barn containing link to house; cottage - two storey extension; granary - conversion to residential with installation of windows; construction of garage/studio, outdoor swimming pool and tennis court; demolition of outbuildings; changes to driveway, parking areas and landscaping.

Preliminary Matters

3. The appeals relate to the same site, and they effectively relate to the same proposed scheme. Unless stated otherwise, and despite the differences in the planning permission and listed building consent regimes, both appeals are dealt with together. This is to avoid unnecessary repetition.
4. The property at Dean Farm, which is within the Green Belt, includes 3 Grade II Listed Buildings (the Listed Buildings). These comprise Dean Farmhouse¹ (the Farmhouse), Barn to the Southwest of Dean Farmhouse² (the Barn) and Granary to the Southwest of Dean Farmhouse³ (the Granary). Consequently, and insofar as is relevant to the appeals before me, I must exercise my statutory duties under Section 66(1) - for appeal A, and 16(2) - for appeal B, of the Planning (Listed Buildings and Conservation Areas) Act 1990 – as amended.
5. Planning permission Ref PL/24/3830/FA (the original planning permission) and listed building consent Ref PL24/3831/HB (the listed building consent) have been granted for works and development at Dean Farm. These are subject to conditions identifying the plans and documents to which the planning permission and the listed building consent relate.
6. An application has subsequently been made to vary the plans to which the planning permission relates – Ref PL/25/5175/VRC.
7. A separate application has also been made for listed building consent – ref PL/25/5170/HB. The plans to which this application relates are: CDF 247 – PL1.19 rev C, CDF 247 – PL1.20 rev B, CDF 247 – PL2.21 rev C, CDF 247 – PL1.21, CDF 247 – PL1.15 rev C, CDF 247 – PL1.18 rev A, CDF 247 – PL2.15 rev C, CDF 247 – PL2.22 rev B, CDF 247 – PL2.16 rev D, CDF 247 – PL1.17 rev B, CDF 247 – PL2.17 rev C, CDF 247 – PL2.16 rev D, CDF 247 – PL2.20 rev D, CDF 247_PL002 rev C, CDF 247 – PL2.18 rev A, and CDF 247_PL001 rev C.
8. It is these later applications - Ref PL/25/5175/VRC and PL/25/5170/HB that are the subject of these appeals. They follow the Council's failure to give notice of its decisions on them. Officer reports containing the Council's putative reasons for refusal of these applications have been provided. These reasons, taken together with procedural considerations, have been used to inform the main issues in these appeals.
9. The main parties have had the opportunity to comment on any implications of the recent publication of the amended National Planning Policy Framework on their cases.
10. I have also sought and taken into account comments made by the main parties in respect of whether the proposed amendments to the plans subject of appeal A would conflict with the operative part of the original planning permission or go beyond what is authorised by it.
11. In respect of Appeal B, development plan policies are not usually determinative in section 20 appeals. However, insofar as they are relevant to the proposed works,

¹ Official list entry number: 1161468

² Official list entry number: 1332444

³ Official list entry number: 1161479

and therefore capable of being material considerations, I have considered the development plan policies cited in the Council's putative refusal reason.

Main Issues

12. The main issues are:

For appeal A:

- Whether the development proposed by the application falls within the scope of Section 73 of the Act, and if so;
 - whether the consequences of the variation of condition 14 of planning permission ref PL/24/3830/FA would result in inappropriate development in the Green Belt, having regard to any relevant development plan policies and the National Planning Policy Framework;
 - the effect of the development on the openness of the Greenbelt;
 - whether the consequences of the variation of condition 14 of planning permission ref PL/24/3830/FA would result in development that would preserve the grade II Listed Buildings or their settings or any features of special architectural or historic interest which they possess; and
 - whether any harm by reason of inappropriateness or any other harm would be clearly outweighed by other considerations, so as to amount to the special circumstances necessary to justify the development, and

For appeal B

- Whether the works would i) preserve the Grade II Listed Building at the Farmhouse or any features of special architectural or historic interest which it possesses, and ii) preserve the Grade II Listed Buildings at the Barn and the Granary, or their settings or any features of special architectural or historic interest which they possess.

Reasons

Appeal A - Whether the development proposed by the application falls within the scope of Section 73 of the Act - Appeal A

13. The scope of S73 of the Act is not limited to minor material amendments. However, the Courts⁴ have established that an application under S73 may not be used to obtain a permission that requires a variation to the terms of the 'operative' part of the original planning permission - which includes the description of development. It therefore follows that the removal and replacement of a plans condition which would authorise development outside of or in conflict with the operative part of the original planning permission, would be outside of the scope of S73.
14. Amongst other things, the plans subject of this appeal include the proposed formation of a single-storey link structure between the Farmhouse and the building identified as the 'cottage'. They also include demolition and alterations to part of the side wall of the Farmhouse to enable access to be provided to the link, as well as associated demolition and alteration of some other parts of the Farmhouse to enable the provision of and access to a proposed first-floor level rear extension.
15. The original planning permission contains a detailed description of the development authorised by it. Significantly, it does not include a single-storey link between the

⁴ *John Leslie Finney v Welsh Ministers* [2019] EWCA Civ 1868

Farmhouse and the 'cottage', or alterations and demolition to the Farmhouse associated with this link and the first-floor rear extension that is also now proposed. Therefore, and on the basis that these new proposed elements constitute development in their own right, the variation of condition 14 to enable the extent of development now proposed would go beyond that which is authorised by the original planning permission. Consequently, a variation to the terms or extent of the 'operative' part of the planning permission would be required, which is not possible under Section 73 of the Act.

16. For these reasons, the development proposed by the application does not fall within the scope of Section 73 of the Act. That being the case, it is neither necessary or appropriate for me to go on to consider other issues or matters in respect of this appeal.

Appeal B

Significance

17. According to their official list entries, the Farmhouse and the Barn date from the 16th Century, the Granary dates from the 17th Century, and all of these buildings were built as timber-framed structures. Nevertheless, compelling evidence has been provided indicating that the main block and the east ranges of the Farmhouse were likely to have been built at different times, with the east range predating the main block.
18. Although the buildings have undoubtedly been altered since their original construction, and they vary considerably in terms of their states of repair, they continue to retain much of their early timber framing, as well as large expanses of old tiled roofs. In addition, the Farmhouse retains its early brick-built chimney stacks, which include a large and imposing stack to the rear of the house. Furthermore, and even if the 20th century additions and alterations to the Farmhouse have not made a meaningful contribution to its significance, they have not prevented the earlier form and plan of this building from being readily appreciable.
19. Consequently, the previously identified early architectural features make a substantial contribution towards the historic and architectural interest of each of the Listed Buildings and to their significance.
20. The evidence indicates that in the 18th or 19th Centuries, the east range of the Farmhouse is likely to have been refaced and underbuilt, and a chimney breast and stack in the west wall of the east range added. Although the first-floor level chimney breast has subsequently been blocked up, these and other historic changes and additions to the building from the 18th and 19th Centuries, reflect the ongoing adaptations of the Farmhouse and make a positive contribution to its evidential and historic interest.
21. As part of a former farmstead, the Barn and the Granary would have historically had a close functional relationship with the Farmhouse. Consequently, and despite their different appearances, forms, and scales, all of the Listed Buildings - as well as other historic ancillary structures within their curtilages, gain some significance from their collective value as part of a former farmstead.

Effects of the works

22. The Council's concern centres on perceived harm to the Listed Buildings from the works associated with the formation of a link structure between the Farmhouse and the 'cottage' and a highly glazed first-floor corridor to the rear of the Farmhouse. Having regard to the evidence before me, I am satisfied that the other proposed works, which are unrelated to these elements, would preserve the Listed Buildings, their settings, and any features of special architectural or historic interest which they possess, and that they would not cause harm to their significance.
23. In respect of the Farmhouse, the provision of the first-floor rear corridor/link would require the partial removal of a historic chimney breast in the west wall of the east range to provide access into bedroom 5. It would also require the demolition of a section of the rear wall of the building, as well as the demolition of what is likely to be an early rear dormer window - which was observed to have at least a partially peg-tiled roof, to provide access from the landing at the top of the stairwell. In addition, the provision of the link structure between the Farmhouse and the neighbouring cottage would require the removal of sections of brickwork in the side wall of the East range of the Farmhouse, around an existing window.
24. The evidence indicates that the section of wall that would be demolished under the dormer window is likely to date to the 20th century. On that basis, the associated removal of 20th century fabric to enable access to the first-floor rear corridor/link would not be materially harmful to the significance of the Farmhouse. However, the construction of the first-floor rear corridor/link and the link between the Farmhouse and the cottage would also necessitate losses to parts of the building's historic fabric that make a positive contribution to its significance.
25. Moreover, the reflective surface of the glass and the dark bronze coloured framework of the highly-glazed proposed first-floor rear corridor/link to the rear of the Farmhouse, would draw the observer's eye to this new part of the building and away from parts of the chimney stacks that would be enclosed by it. Even though these chimney stacks, which are a key architectural feature of the building, could continue to be discerned to a degree, such works would harmfully erode the legibility of the composition of the rear elevation of the Farmhouse.
26. Furthermore, insufficient information has been provided to enable me to understand how the framework and glazing associated with the first-floor rear corridor/link would adjoin historic parts of the walls and roof of the building, which are key architectural features that contribute greatly to its significance. Given the importance of these parts of the building, it is essential that full details of how the corridor/link would adjoin the building be provided, to allow the effects of the associated works to be fully assessed.
27. For these reasons, and even if the extent of the losses of the Farmhouse's historic fabric would be modest in relation to the overall extent of the building, these losses would erode its architectural and historic interest.
28. Because the structure that would link the Farmhouse and the Cottage would be of low height and 'light weight' appearance, it would read as a clearly subservient addition to both buildings. That being the case, it would not erode the primacy of the main Farmhouse building at the heart of the former farmstead, or the separate identities of the buildings around it. Consequently, the development would not erode the collective group value of the Listed Buildings, or the contribution that each of the Listed Buildings make to the others significance.

29. Nevertheless, and although the scheme would not cause harm to the significance of the Granary or the Barn, for the reasons previously given, it would cause harm to the significance of the Farmhouse.

Public benefits / Heritage balance

30. In line with policy HE6: 1. of the National Planning Policy Framework (the Framework), substantial weight is given to the conservation of the Listed Buildings.
31. The harm that would be caused to the significance of the Farmhouse would be to a lower level within this category. This is because the scheme would result in the loss of small parts of its historic fabric that make a meaningful contribution to its significance. It is also because the works would harmfully reduce the legibility of some of its key historic architectural features.
32. In accordance with policy HE6: 3, of the Framework, the harm that would be caused to the significance of the Farmhouse is attributed considerable importance and weight.
33. Framework Policy HE6: 4 then indicates that any harm to the heritage asset and its significance should be weighed against any public benefits arising from the proposal.
34. The implementation of the appeal scheme would undoubtedly facilitate the re-use of the Farmhouse as a residential dwelling. However, I have no reason to doubt that the building could be brought back into use with less harmful works being undertaken. As such, modest weight is accorded to this public benefit.
35. Subject to the proposed works being carried out to the Barn and to the Granary, the scheme would also contribute towards facilitating the re-use and preservation of these buildings, which would attract substantial weight. However, in the absence of a planning obligation or any suggested condition wording requiring a programme of works for the entire scheme to be submitted to and approved in writing by the Council, I cannot be certain that the public benefits that would flow from the works to the Barn and the Granary would result. Therefore, only a small amount of weight can be attributed to the potential public benefits arising from the works to the Granary and the Barn.
36. Economic benefits would arise during the preparation for and implementation of the works. However, because the scheme relates to a single house and associated outbuildings, the associated public benefits would be small and very little weight is attributed to them.
37. The alterations to the residential dwelling and its enlargement would enhance the living conditions available to future occupiers of the property. However, this is a private rather than a public benefit as set out in the Government's Planning Practice Guidance⁵.
38. Consequently, and even though the completion of the works would preserve the Grade II Listed Buildings at the Barn and the Granary, their settings and any features of special architectural or historic interest which they possess, the works would not preserve the Grade II Listed Building at the Farmhouse or any features of special architectural or historic interest which it possesses. That being the case,

⁵ Paragraph: 020 Reference ID: 18a-020-20190723

when taken as a whole, the works would fail to satisfy the requirements of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended), and the provisions of the Framework that seek to secure the conservation of heritage assets. In addition, these works would conflict with policies LB1 and LB2 of the Chiltern Local Plan⁶, policy CS20 of the Core Strategy⁷, and historic environment policy 1 of the Neighbourhood Plan⁸. Collectively and amongst other things, these policies require proposals to be of a high standard of design which respects the character of the surrounding area, and to conserve and /or enhance the significance of designated heritage assets and their settings.

Other Matters

39. The appeal site is within the zone of influence of the Burnham Beeches Special Area of Conservation (the SAC), which is a habitat site afforded protection under the Habitat Regulations, and which is subject to recreational and air quality pressures.
40. If I had otherwise been minded to allow either of the appeals, it would have been necessary to establish whether, without mitigation, the scheme would have a likely significant effect on the integrity of this habitat site – either on its own or in combination with other projects. Depending on the findings on this matter, it could then have been necessary to undertake an Appropriate Assessment. However, I have not needed to pursue this issue because a finding that the proposal would not have an adverse effect on the integrity of the SAC, either with or without mitigation, would, at best, be a neutral matter.
41. I appreciate that there is an extant listed building consent for an alternative scheme on the site subject of this appeal, and accept that there is a more than theoretical possibility that the approved scheme could be implemented. However, while sharing many similarities with the previously approved scheme, the proposal subject of appeal B includes additional elements and more demolition than the fallback scheme. Furthermore, although the proposal would not require either the subdivision of what would become the master bedroom, or the removal of a section of the building's historic timber framing to accommodate an opening to provide first-floor corridor access to bedroom 3, the nature and extent of the proposed works subject of appeal B would introduce additional harm which would not occur if the fallback scheme were implemented. That being the case, the fallback scheme does not weigh in favour of Appeal B.

Conclusions

42. For the reasons given, appeals A and B should be dismissed and the applications for planning permission and listed building consent should be refused.

V Simpson

INSPECTOR

⁶ Chiltern District Council – Chiltern District Local Plan – Written Statement – Adopted 1997 and consolidated in 2007 and 2011

⁷ Chiltern District Council – Local Development Framework – Core Strategy for Chiltern District – adopted November 2011

⁸ Chalfont St Giles Parish Council - Neighbourhood Plan for Chalfont St Giles Parish 2014 - 2036